

26TRCV00454 26TRCV00454

County: los-angeles

Division: Civil Law and Motion

Department: M

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Case Number: 26TRCV00454 Hearing Date: August 31, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter Monday, August 31, 2026

Department M Calendar No.

PROCEEDINGS

Michael

Bird v. Eric Yan, et al.

26TRCV00454

1. Eric Yan's Motion to Quash Service of Summons and
Complaint

TENTATIVE RULING

Eric Yan's Motion to Quash Service
of Summons and Complaint is granted.

Background

Plaintiff

filed the Complaint on February 5, 2026. Plaintiff alleges the following facts.

Plaintiff was a tenant on property owned and/or controlled by Defendants. The
property suffered from plumbing issues. Defendants failed to remedy the

plumbing issues which included a broken drain waste pipe. The Complaint alleges causes of action for (1) Breach of Los Angeles Code 45.30 et seq.; (2) IIED; (3) NIED.

Motion to Quash

Code Civ. Proc., § 418.10

states, in relevant part:

“(a) A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her.”

“In the absence of a voluntary submission to the authority of the court, compliance with the statutes governing service of process is essential to establish that court’s personal jurisdiction over a defendant.” Dill v. Berquist Const. Co., Inc. (1994) 24 Cal.App.4th 1426, 1439. “A party cannot be properly joined unless served with the summons and complaint; notice does not substitute for proper service. Until statutory requirements are satisfied, the court lacks jurisdiction over a defendant.” Ruttenberg v. Ruttenberg (1997) 53 Cal.App.4th 801, 808. “Service of a substantially defective summons does not confer jurisdiction over a party and will not support a default judgment. Notice of the litigation does not confer personal jurisdiction absent substantial compliance with the statutory requirements for service of summons.” MJS Enterprises, Inc. v. Super. Ct. (1984) 153 Cal.App.3d 555, 557 (internal citations omitted). “When a defendant challenges [the court’s] jurisdiction by bringing a motion to quash, the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.” Dill v. Berquist Const. Co., Inc. (1994) 24 Cal.App.4th 1426, 1439-40.

Code Civ. Proc., § 415.20(b) states:

“If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served, as specified in Section 416.60, 416.70, 416.80, or 416.90, a summons may be served by leaving a copy of the summons and complaint at the person’s dwelling house, usual place of abode, usual place of business, or usual mailing address other

than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of his or her office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. Service of a summons in this manner is deemed complete on the 10th day after the mailing.”

Defendant moves for an order quashing service of the summons and complaint on the grounds that Defendant has not been validly served with process and that this Court has no jurisdiction over Defendant. CCP § 418.10.

On February 24, 2026, Plaintiff filed a proof of service. The proof of service indicates that Defendant was served by substitute service by leaving the summons and complaint with an “Isabella Doe,” on February 19, 2026, at 8210 Creighton Ave Los Angeles, CA 90045. Then, the proof of service indicates that the summons and complaint was mailed to Defendant on February 20, 2026 to 8210 Creighton Ave Los Angeles, CA 90045.

Defendant states: “The Premises is a rental unit that is not occupied by me as a residence and not used as my place of business or as my mailing address. The persons occupying the Premises are merely tenants. The Premises is not, and has never been my dwelling house, usual place of abode, usual place of business, or usual mailing address.” (Decl., Eri Yan, ¶ 5). Defendant argues that the address upon which service was effectuated was not Defendant’s business, home, or mailing address, and that no one was authorized to accept the summons and complaint on his behalf at that address.

“When a defendant challenges [the court’s] jurisdiction by bringing a motion to quash, the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.” Dill v. Berquist Const. Co., Inc. (1994) 24 Cal.App.4th 1426, 1439-40. Plaintiff correctly notes that Defendant’s declaration was unsigned. However, unlike other motions, Plaintiff has the burden of presenting evidence to prove effective service. Plaintiff has failed to meet his burden to prove the existence of jurisdiction with competent facts requisite to establish effective

and proper service of the summons and complaint. In fact, the only evidence submitted by Plaintiff, in the form of Plaintiff's counsel's declaration, appears to tacitly admit that the address upon which service was effectuated was not the business, home, or mailing address of Defendant. Plaintiff identifies a different address for an entity in which Plaintiff is the agent for service of process. (Decl., Mark J. Castellonet, ¶¶ 5-7). There are no facts in the declaration to support any contention that the address utilized for substitute service was the dwelling, place of business, or usual mailing address of Defendant.

Therefore, Defendant's motion to quash service of the summons and complaint is granted.

Defendant is ordered to give notice of this ruling.